

Court No. - 40

Case :- WRIT - C No. - 14201 of 2018

Petitioner :- Naresh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

AND

Case :- WRIT - C No. - 14243 of 2018

Petitioner :- Bhushan

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

In both these writ petitions the allegations are similar to the effect that the final assessment orders were passed without any opportunity or following the procedure prescribed in terms of Section 126 of the U.P. Electricity Supply Act, 2003 read with the provisions of U.P. Electricity Supply Code, 2005. Sri Saxena, learned counsel appearing for the respondent Electricity Department may obtain instructions about the status of the proceedings that were undertaken before passing of the final assessment orders and the final assessment orders if any.

Put up on 26.04.2018.

Order Date :- 19.4.2018

R./

Court No. - 40

Case :- WRIT - C No. - 14201 of 2018

Petitioner :- Naresh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Put up on Tuesday (01.05.2018) on the request of Sri A.K.Saxena as he submits that a wrong party was impleaded as a result whereof the instructions could not be completed. Learned counsel for the petitioner is permitted to carry out necessary corrections in the array of parties by moving an appropriate application by the date fixed.

Put up on Tuesday (01.05.2018).

Order Date :- 26.4.2018

R./

Court No. - 40

Case :- WRIT - C No. - 14201 of 2018

Petitioner :- Naresh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Civil Misc.Amendment Application No.2 of 2018

An amendment application has been filed. The same is taken on record.

The amendment application is allowed.

Necessary correction be carried out during the course of the day.

Put up this matter day after tomorrow i.e. 03.05.2018 on the request of Sri Awakhesh Kumar Saxena, learned counsel for the respondent.

Order Date :- 1.5.2018

KA

Court No. - 40

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Petitioner :- Naresh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

Sri Saxena, learned counsel for the respondent prays that the instructions could not be obtained on account of the non-availability of the Officer who had some ceremony in his house. He prays that the matter be taken up on Monday.

Put up on Monday ((07.05.2018).

Order Date :- 3.5.2018

R./

Court No. - 40

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Petitioner :- Naresh

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena
AND

Case :- WRIT - C No. - 14243 of 2018

Petitioner :- Bhushan

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Atul Kumar

Counsel for Respondent :- C.S.C.,Awadhesh Kumar Saxena

Hon'ble Amreshwar Pratap Sahi,J.

Hon'ble Shashi Kant,J.

These two writ petitions have been filed challenging the recovery proceedings arising out of the citation issued to the petitioners dated 26.12.2017 claiming arrears of electricity consumed by the petitioners.

We had adjourned the matter in both the cases in order to enable the learned counsel for the respondent Electricity Department to inform the Court about the steps taken for carrying out any assessment and then calling upon the petitioners to make certain deposits.

The instructions received by Sri Saxena indicate that notices to the petitioners had been sent by ordinary post. Since the undelivered post had not been returned back therefore the department presumed service on the respondent whereafter the final assessment order came to be passed and the recovery proceedings were initiated.

We have considered the submissions raised and we find that in view of Clause 6.8 of the U.P. Electricity Supply Code, 2005 the mode of service of notice provided in relation to an assessment is by registered post. It is also by pasting the notice at a conspicuous place. In the instant case none of the aforesaid procedures appear to have been adopted and therefore there can not be a presumption of valid service of notice on the petitioners who have denied having received any such notice whereafter the assessment orders have been passed.

In the aforesaid circumstances the final assessment orders said to have been made the basis for recovery does not appear to be in conformity with the provisions of Clause 6.8 of Code 2005. The consequential recovery in such proceedings is therefore

invalid. Accordingly the certificate of recovery dated 26.12.2017 in both the writ petitions are hereby quashed.

It shall be open to the petitioners to file their objections if any to the provisional assessments before the respondent no.4 within fifteen days from today. The respondent no.4 shall take a decision thereon within three weeks thereafter. If the petitioners are still aggrieved by any such orders being passed by the Executive Engineer the petitioners shall have a right of statutory appeal in terms of Section 127 of the Electricity Act.

Both the writ petitions stands allowed with the above directions. In the event the petitioners fail to file their objections as directed above it shall be open to the Executive Engineer to take such steps pursuant to the assessment orders already passed as may be permissible in law.

Order Date :- 7.5.2018

R./